

		properly draft an agreement, and placing Plaintiff Abinante's intellectual property rights at risk. (FAC ¶ 18.) The elements of a cause of action for breach of contract are: (i) existence of the contract; (ii) Plaintiff's performance or excuse for nonperformance; (iii) Defendant's breach; and (iv) damage to plaintiff resulting therefrom. (<i>Oasis West Realty, LLC v. Goldman</i> (2011) 51 Cal.4th 811.) As discussed above, neither the attached contract nor the allegations in FAC show the existence of a contractual relationship between Plaintiffs and Defendant Stradling. <u>Fourth Cause of Action (Equitable Indemnity)</u> The FAC alleges Plaintiffs are entitled to equitable indemnification from Defendant to the extent Plaintiffs are subject to fines and penalties following the California Department of Justice's investigation of actions Plaintiffs took following Defendant's legal advice. (FAC ¶ 26.) The elements of a cause of action for indemnity are: (1) a showing of fault on the part of the indemnitor; and (2) resulting damages to the indemnitee for which the indemnitor is contractually or equitably responsible. (<i>Expressions at Rancho Niguel Ass'n v. Ahmanson Developments, Inc.</i> (2001) 86 Cal.App.4th 1135.) Here, as discussed above, the Complaint alleges no wrongdoing by Defendant. Should Plaintiffs desire to file an amended complaint that addresses the issues in this ruling, Plaintiffs shall file and serve the amended complaint within 30 days of service of the notice of ruling. Defendant is ordered to give notice.
2	Apple Dream, LLC vs. Chae	TENTATIVE RULING: <u>Demurrer to Cross-Complaint</u> Cross-Defendant Yebin Kim demurs to the Cross-Complaint of Cross-Complainant/Defendant Bongroung Chae. For the following reasons, the demurrer is OVERRULED in part and SUSTAINED in part with leave to amend.

Standard on Demurrer

In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1404-1405.) Questions of fact cannot be decided on demurrer. (*Berryman v. Merit Prop. Mgmt., Inc.* (2007) 152 Cal.App.4th 1544, 1556.) A demurrer tests only the sufficiency of the complaint; a court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718 n.7.)

Although courts should take a liberal view of inartfully drawn complaints (*see* Code Civ. Proc., § 452), it remains essential that a complaint set forth the actionable facts relied upon with sufficient precision to inform the defendant of what plaintiff is complaining, and what remedies are being sought. (*Leek v. Cooper* (2011) 194 Cal.App.4th 399, 413.) Bare conclusions of law devoid of any facts are insufficient to withstand demurrer. (*Schmid v. City and County of San Francisco* (2021) 60 Cal.App.5th 470, 481; *see* Code Civ. Proc., § 425.10(a).)

First Cause of Action (Tort of Another Doctrine)

The demurrer to the first cause of action is SUSTAINED with leave to amend.

The first cause of action alleges Cross-Complainant Bongroung Chae has incurred costs, expenses, and attorney's fees and may suffer liabilities herein for the acts or the failure to act by Cross-Defendants. (Cross-Compl. ¶ 16.)

"The ["tort of another"] doctrine allows a plaintiff to recover attorney fees "if he is required to employ counsel to prosecute or defend an action against a third party because of the tort of defendant." [Citation.]" (*Behniwal v. Mix* (2005) 133 Cal.App.4th 1027, 1043.)

As Mr. Chae concedes, the doctrine "is not an independent cause of action" (Opp. at 6:23-24), and thus, the purported first cause of action fails as a matter of law.